

HOUSE No. 3967

The Commonwealth of Massachusetts

PRESENTED BY:

Christopher Richard Flanagan

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to amending the Community Preservation Act to include an extra percentage surcharge for accessibility.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>1/15/2025</i>

HOUSE No. 3967

By Representative Flanagan of Dennis, a petition (accompanied by bill, House, No. 3967) of Christopher Richard Flanagan for legislation to further regulate surcharges on real property. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to amending the Community Preservation Act to include an extra percentage surcharge for accessibility.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 44B of the General Laws is hereby amended by inserting after section 7 the
2 following section:-

3 Section 7A. (a) This section shall take effect in any city or town upon the approval by the
4 legislative body and its acceptance by the voters of a ballot question as set forth in section 3;
5 provided, that the ballot language shall be in the form provided in subsection (c); provided
6 further, that the city or town has accepted sections 3 to 7, inclusive.

7 (b) Notwithstanding the provisions of chapter 59 or any other general or special law to
8 the contrary, the legislative body may vote to accept this section by approving a surcharge on
9 real property of 1 per cent of the real estate tax levy against real property. The amount of the
10 surcharge shall not be included in a calculation of total taxes assessed for purposes of section
11 21C of said chapter 59.

(c) Upon approval by the legislative body, the actions of the body shall be submitted for acceptance to the voters of a city or town at the next regular municipal or state election. The city or town clerk or the state secretary shall place it on the ballot in the form of the following question:

"Shall this (city or town) accept section 7A of chapter 44B of the General Laws, as approved by its legislative body, a summary of which appears below"

(Set forth here a fair, concise summary and purpose of the law to be acted upon, as determined by the city solicitor or town counsel.)

(d) Upon acceptance of this section, and upon the assessors' warrant to the tax collector, the accepted surcharge shall be imposed pursuant to section 4.

(e) A city or town that accepts this section shall add 1 additional member to the community preservation committee established pursuant to section 5, who shall be a member of the municipality's disability commission or other municipal commission related to disability or accessibility, or, if no such commission exists or no such member is available, who shall be appointed by the select board or city council.

(f) In each fiscal year and upon the recommendation of the community preservation committee, the legislative body shall spend, or set aside for later spending, not less than 10 per cent of the annual revenues in its Community Preservation Fund for enhancing the physical accessibility of public indoor and outdoor spaces in the community.